

24VECV02542 24VECV02542

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV02542 Hearing Date: June 24, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Vahan Agopyan,

Plaintiff,

v.

Volkswagen Group of America, Inc.

Defendant.

Case Number Department

24VECV02542 107

COURT'S [Tentative] ORDER RE:

Motion

for Attorney Fees

[THE

FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant in the reduced sum of

\$14,948.00

I.

BACKGROUND

On July 11, 2021,

Plaintiff Vahan Agopyan ("Plaintiff") leased a 2021 Volkswagen Tiguan (the "Vehicle"). (Complaint ¶ 8.) The Vehicle was defective. (Complaint ¶ 10.)

On May 30, 2024,

Plaintiff filed a complaint against Defendants Volkswagen Group of America, Inc. ("Defendant") and Does 1 through 10, alleging causes of action for: (1) violation of Song-Beverly Act - breach of express warranty; (2) violation of Song-Beverly Act - breach of implied warranty; and (3) violation of the Song-Beverly Act section 1793.2.

On March 5, 2026,

Plaintiff filed a notice of settlement of entire case.

On May 12, 2026,

Plaintiff filed a motion for attorney fees (the “Motion”). On June 8, 2026,

Defendant filed an opposition. On June 17, 2026, Plaintiff filed a reply.

II.

THE

REPLY

Replies

are due to be filed and served at least five court days before the hearing.

(Code Civ. Proc., § 1005, subd. (b).) Plaintiff filed the reply only four court

days before the hearing. Thus, it is untimely.

“A trial court has

broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023)

91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its

discretion and consider the untimely reply.

III.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer

prevails in an action under this section, the buyer shall be allowed by the

court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

"The plain

wording of the statute requires the trial court to base the fee award upon

actual time expended on the case, as long as such fees are reasonably incurred

– both from the standpoint of time spent and the amount charged." (*Robertson v. Fleetwood Travel Trailers of California,*

Inc. ("Robertson") (2006) 144 Cal.App.4th 785, 817, original

italics.) The "prevailing party has the burden

of showing that the fees incurred were reasonably necessary to the conduct of

the litigation, and were reasonable in amount." (*Id.* at pp. 817-818.)

"The amount of an attorney fee to be awarded is a matter within the sound

discretion of the trial court." (*Id.* at p.

822.)

"[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to

be applied in the absence of clear legislative intent to the contrary[.]" (*Robertson,*

supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method "requires

the trial court to first determine a touchstone or lodestar figure based on a

careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Id. at p. 819.) However, a trial court is “not required to apply a multiplier.” (Id. at p. 822, original italics.)

IV.

CALIFORNIA

RULES OF COURT, RULE 8.1115

With

limited exceptions, “an opinion of a California Court of Appeal or superior court appellate division that is not certified for publication or ordered published must not be cited or relied on by a court or a party in any other action.” (Cal. Rules of Court, rule 8.1115(a).)

In

the Motion, Plaintiff relies on unpublished superior court orders. (See, e.g.,

Motion pp. 18, 20.) The court expects Plaintiff to follow the California Rules

of Court.

V.

DISCUSSION

Plaintiff

moves for an order awarding Plaintiff attorneys' fees and costs in the sum of

\$27,330.00. (Motion p. 21.) This reflects \$18,664.00 in attorneys' fees, a 1.25

enhancement increasing the award by \$4,666.00, and \$4,000.00 in fees to review

the opposition, draft the reply, and appear at the Motion's hearing. (Motion p.

21.) In reply, Plaintiff reduces the sum sought for the opposition, reply, and

hearing to \$2,745.00. (Reply p. 11.)

Hourly

Rates:

Defendant

argues Plaintiff's counsels billed at excessive hourly rates and requests the

court reduce the hourly rates. (Opposition p. 9.)

Plaintiff's

counsels billed at rates ranging from \$350.00 per hour to \$600.00 per hour.

(Jacobson Declaration Ex. 38 pdf pp. 235-246.) Plaintiff's counsel, Kevin Y.

Jacobson, submits a declaration discussing counsels' relevant experience.

(Jacobson Declaration ¶¶ 3-6 (Jacobson), 44 (Mahnke), 46 (Sogoyan), 48 (Yang),

50 (Basinger), 52 (Hovannisyan), 54 (Christy) 56 (Kohanoff), 58 (Kim).)

The court finds the

requested hourly rates are reasonable. (See Goglin v. BMW of North America,

LLC (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did

not abuse its discretion in finding a \$575 hourly rate was appropriate in a

Song-Beverly Consumer Warranty Act action.])

Time

Billed:

Plaintiff's

counsels billed 36.70 hours on this matter and an additional 6.1 hours relating

to the opposition, reply, and the Motion's hearing. (Jacobson Declaration Ex.

38 pdf pp. 235-246, Jacobson Reply Declaration ¶ 3.)

In

opposition, Defendant argues Plaintiff's counsels billed excessively for

discovery, routine motions to compel, time spent on unreasonable or clerical

time, and time billed after Defendant's offer to compromise. (Opposition pp.

13-18.)

The

court agrees with Defendant that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a lack

of efficiency in litigating the case and a lack of clarity in tasks performed.”

(See Mikhaeilpoor v. BMW of North America, LLC (2020) 48

Cal.App.5th 240 256 [“Further, counsel’s billing entries demonstrate a lack of

efficiency in litigating the case and a lack of clarity in tasks performed.

This evidence supports the trial court’s finding that plaintiff’s counsel

failed to act efficiently.”)] Plaintiff’s counsels are experienced in this area

of the law. Thus, the court will adjust the reflected time to reflect the

court’s understanding that the time billed should reflect Plaintiff’s counsels’

expertise.

Date

Task

Hours

Requested

Adjusted

Hours

Hourly

Rate

10/22/24

Prepare

and finalize Plaintiff’s Notice of Motion and Motion to Compel Further

Responses to Plaintiff's Request for Production, Set one

1.30

1.0

\$525.00

10/22/24

Prepare

and finalize Separate Statement in support of Plaintiff's Motion to Compel

Further Responses to Plaintiff's Request for Production, Set one (REDUCED)

0.50

0.30

\$525.00

10/22/24

Prepare

and finalize Declaration in support of Plaintiff's Motion to Compel Further

Responses to Plaintiff's Request for Production, Set one

1.20

0.60

\$525.00

12/04/24

Check

procedural and discovery posture; review and analyze plaintiff's discovery

motion paper and defendant's opposition paper; review and analyze defendant's

production

1.20

1.00

\$350.00

12/04/24

Prepare,

finalize, file and serve plaintiff's Reply in support of plaintiff's motion

to compel further responses to plaintiff's requests for production, set one

1.30

1.00

\$350.00

01/19/26

Prepare

Declaration of David S. Christy in Support of Plaintiff's Motion to Compel

Further Responses to Plaintiff's Request for Production of Documents, Set Two

1.70

1.00

\$600.00

01/19/26

Prepare

Proposed Order in Support of Plaintiff's Motion to Compel Further Responses

to Plaintiff's Request for Production of Documents, Set Two

0.30

0.10

\$600.00

01/19/26

Prepare

Separate Statement in Support of Plaintiff's Motion to Compel Further

Responses to Plaintiff's Request for Production of Documents, Set Two

0.80

0.40

\$600.00

01/21/26

Prepare

Separate Statement in Support of Plaintiff's Motion to Compel Further

Responses to Plaintiff's Request for Production of Documents, Set Two

4.20

1.0

\$600.00

01/21/26

Prepare

Plaintiff's Notice of Motion and Motion to Compel Further Responses to

Plaintiff's Request for Production of Documents, Set Two

1.00

0.20

\$600.00

01/21/26

Review

Local Rules and Court Department rules in order to confirm meet and confer

requirements in order to draft Motion to Compel Further Responses to

Plaintiff's Request for Production of Documents, Set Two

0.20

0.10

\$600.00

01/23/26

Prepare

and finalize Meet and Confer Letter regarding Defendant's Deficient Discovery

Response

0.40

0.20

\$600.00

04/15/26

Prepare

Memorandum of Costs

0.80

0.50

\$450.00

05/11/26

Review/Analyze:

case file in order to draft Motion for Attorneys' Fees, Declaration in

Support of Motion, and Proposed Order Granting Motion

0.30

0.10

\$395.00

05/11/26

Draft/Revise:

Declaration in Support of Motion for Attorneys' Fees

2.00

0.50

\$395.00

05/12/26

Draft/Revise:

Motion for Attorneys' Fees

2.60

2.00

\$395.00

-

Review

and analyze the Declaration of Alexander Y. Kim and corresponding exhibits

0.60

0.50

\$450.00

-

Draft

Plaintiff's Reply Brief in Support of Motion for Attorneys' Fees

2.80

1.00

\$450.00

-

Prepare

for and attend the hearing of Plaintiff's Motion for Attorneys' Fees

2.0

1.0

\$450.00

(Jacobson

Declaration Ex. 38 pdf pp. 235-246; Jacobson Reply Declaration ¶ 3.)

The

adjustments above reflect a reduction of \$6,461.00 in the requested fees.

The

court finds the reasonable number of hours expended on this matter was 30.00

hours, at the hourly rates requested.

Lodestar

Multiplier:

Plaintiff

requests a 1.25 lodestar multiplier. (Motion p. 18.)

The court understands

that litigating Song-Beverly actions requires technical expertise. But "a

trial court should award a multiplier for exceptional representation only when

the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.) Here, Plaintiff’s counsels displayed the skill, proficiency, and technical expertise commensurate with counsels’ experience and specialty. Nothing before the court indicates Plaintiff’s counsels’ representation exceeded that which would have been provided by other attorneys of comparable skill and experience billing at counsels’ rates.

Accordingly, the court

denies Plaintiff’s request for an enhancement.

VI.

CONCLUSION

For the foregoing

reasons, the Motion is granted in the reduced sum of \$14,948.00, to be paid by

Defendant to Plaintiff’s counsel within thirty (30) days of this order.

Dated: June

24, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court